

BECM 3107

DISPUTE RESOLUTION

Term Final Exam Study Guide

Easy explanations + Bangla meanings + memory techniques

Comparison tables • probable questions • MCQs • last-minute revision

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Source: "4.0 - Dispute Resolution.pdf" (41 pages)

How to Use This Guide

এই গাইডটি *lecture slides*-এর *terminology* ও *sequence* অনুসরণ করে তৈরি করা হয়েছে।

3X

Study rule: প্রথমে concept বুঝুন, তারপর mnemonic মুখস্থ করুন, শেষে বই বন্ধ করে লিখে practice করুন।

1. Read the easy explanation once - সহজ ব্যাখ্যাটি একবার মনোযোগ দিয়ে পড়ুন।
2. Cover the page and recall the mnemonic - mnemonic দেখে মূল points বলুন।
3. Write a 5-mark answer using DPEC - Definition, Points, Example, Conclusion.
4. Finish with MCQs and probable written questions.

Course Map - পুরো অধ্যায়ের মানচিত্র

Step	Topic	What to remember
1	Dispute basics	Meaning, root and nature of construction disputes
2	ADR	Methods, meaning and advantages
3	Standard forms	JCT and FIDIC Rainbow Suite
4	Adjudication	Meaning, role, history, models and advantages
5	Arbitration	Principle, arbitrator, features and award
6	International enforcement	New York Convention 1958
7	Contract routes	FIDIC Clause 20 and PW3 Clause 92

Master Memory Chain

MAP

DR ADR Arbit : Dispute occurs → try Alternative Dispute Resolution → Adjudication → Arbitration → Litigation/court when necessary.

1. Basic Concepts of Dispute Resolution

Dispute and Resolution

Term	Easy meaning	বাংলা অর্থ
Dispute	A disagreement or argument between parties	বিরোধ / মতবিরোধ
Resolution	The process of resolving or settling the dispute	বিরোধ নিষ্পত্তি
Contractual dispute	A party alleges that the other has not kept the bargain	চুক্তির শর্ত না মানার অভিযোগ থেকে সৃষ্ট বিরোধ
DEF	One-line definition: Dispute resolution means the process used to settle disagreements between parties.	

Root of Contractual Dispute

The central root is simple: **one party says the other party has not kept the bargain.**

সহজভাবে: চুক্তিতে যা করার কথা ছিল, কোনো পক্ষ তা করেনি বা ঠিকভাবে করেনি - এখান থেকেই বিরোধ শুরু হয়।

Nature of Construction Disputes - Mnemonic: ETLE

Code	Type	Easy explanation	বাংলা
E	Enforceable promises	Disagreement about the terms and promises of the contract	চুক্তির বলবৎযোগ্য শর্ত
T	Technical matters	Dispute about technical cause, design, failure or construction issue	কারিগরি বিষয়
L	Legal matters	Problem in interpreting or applying law and inconsistent contracts	আইন ব্যাখ্যা ও প্রয়োগ
E	Entitlement & magnitude	Is a party eligible to claim, and if yes, how much?	দাবির অধিকার ও পরিমাণ
MEM	Memorize ETLE: Enforceable - Technical - Legal - Entitlement. বাংলা মনে রাখুন: “শর্ত-টেকনিক-আইন-টাকা”.		

2. Alternative Dispute Resolution (ADR)

What is ADR?

ADR includes dispute-resolution processes and techniques that take place **outside the governmental judicial process**.

বাংলা: সরকারি আদালতের বাইরে বিকল্প পদ্ধতিতে বিরোধ নিষ্পত্তি করাকে ADR বলা হয়।

Methods Listed in the Slides

Method	বাংলা অর্থ / simple cue	Decision type
Conciliation	সমঝোতা সহায়তা	Parties settle
Quasi-conciliation	আংশিক/মিশ্র সমঝোতা পদ্ধতি	Parties settle
Mediation	নিরপেক্ষ mediator-এর সাহায্যে সমঝোতা	Parties decide
Private enquiry	ব্যক্তিগত অনুসন্ধান/বিশেষজ্ঞ যাচাই	Depends on agreement
Mini-trial	সংক্ষিপ্ত trial-type presentation	Usually settlement-focused
Adjudication	দ্রুত নিরপেক্ষ সিদ্ধান্ত	Binding decision
Arbitration	চুক্তিভিত্তিক ব্যক্তিগত বিচার	Final/binding award
Litigation	আদালতের মামলা	Court judgment

Note: The slides provide detailed treatment mainly for adjudication and arbitration; the short meanings above are student-friendly cues.

Advantages of ADR - Mnemonic: TCFRRJ

Code	Advantage	Easy meaning
T	Time & money	Saves substantial time and cost
C	Control	Parties can tell their story and influence the outcome
F	Focus	Focuses on practical issues, not only strict legal rights
F	Flexible & creative	Allows flexible and creative solutions
R	Relationships	Encourages cooperation and preserves business relations
R	Results	Slides mention settlement rates of up to 85%
J	Justice access	Provides a mechanism for people unable to afford court fees
MEM	Memory sentence: "Time-Control-Focus-Flexibility-Relationship-Result-Justice" - সময়, নিয়ন্ত্রণ, মূল সমস্যা, নমনীয়তা, সম্পর্ক, ফল, ন্যায়বিচার।	

3. Standard Contract Forms: JCT and FIDIC

JCT

JCT means **Joint Contract Tribunal (UK)**. The slides show several JCT contract families such as Design and Build, Minor Works, Short Form of Sub-Contract and Standard Building Contract with Quantities.

FIDIC

FIDIC is the acronym for **Fédération Internationale Des Ingénieurs-Conseils** (International Federation of Consulting Engineers).

The slides state that FIDIC membership covers 97 countries and that the 1999 “Rainbow Suite” includes four major books.

FIDIC Rainbow Suite - Mnemonic: RYSG

Book	Main use shown in slides	বাংলা cue
Red Book	Construction works designed by the Employer	Employer design / নির্মাণ
Yellow Book	Plant and Design-Build	Plant + design-build
Silver Book	EPC / Turnkey Projects	EPC / turnkey
Green Book	Short Form of Contract	ছোট/সহজ contract
4B	RYSG: Red - Yellow - Silver - Green. মনে রাখুন: “রেড ইয়েলো সিলভার গ্রিন”.	

Why standard forms matter in disputes

- They define the agreed procedure for claims and dispute settlement.
- They help identify which decision-maker, rule, notice and sequence apply.
- The slides later point to FIDIC Clause 20 and PW3 Clause 92 as dispute-related provisions.

4. Adjudication

Definition and Core Features - Mnemonic: QIB

Code	Point	Easy explanation	বাংলা
Q	Quick & inexpensive	Designed to handle disputes rapidly at lower cost	দ্রুত ও কম খরচে
I	Independent third party	Adjudicator is mutually agreed and independent	নিরপেক্ষ তৃতীয় পক্ষ
B	Binding decision	Adjudicator gives a binding decision on construction disputes	বাধ্যতামূলক সিদ্ধান্ত

The slides present adjudication mainly as a legislation-backed procedure for speeding payment disputes and applying to construction and supply contracts.

Role of the Adjudicator - Mnemonic: INPDI

Letter	Duty	Bangla meaning
I	Act impartially	নিরপেক্ষভাবে কাজ করা
N	Follow natural justice	প্রাকৃতিক ন্যায়ের নিয়ম মানা
P	Apply proper/governing law	প্রযোজ্য আইন প্রয়োগ করা
D	Use powers and discretion	ক্ষমতা ও বিবেচনাবোধ ব্যবহার
I	Immunity except bad faith	অসৎ উদ্দেশ্য ছাড়া কার্যক্রমে সুরক্ষা
LAW	Natural justice: Both parties should have a fair opportunity to present their case, and the decision-maker must remain unbiased.	

Adjudication Models in the Slides

Jurisdiction	Contract / legislation
International	All FIDIC Rainbow Forms; contract may be mandated by lender
United Kingdom	Housing Grants, Construction and Regeneration Act 1996
Australia - NSW	Building and Construction Industry Security of Payment Act 1999
Australia - Victoria	Building and Construction Industry Security of Payment Act 2002
New Zealand	Construction Contracts Act 2002
Singapore	Building and Construction Industry Security of Payment Act 2004

5. Adjudication: History and Advantages

History of Construction Adjudication

Year	Event shown in the slides
1975	USA Colorado State Eisenhower Tunnel - Dispute Review Board (DRB)
1980	World Bank Honduras El Cajon hydroelectric power plant - DRB
1982	FIDIC adopted DRB as an option for Red Book 4th Edition
1995	World Bank adopted DRB for Standard Bidding Documents
1999	FIDIC adopted DRB for the 1999 Red Book Rainbow Edition
2005	World Bank and MDBs obtained copyright agreement for the FIDIC Pink Book "Harmonised Edition"
2009	JICA adopted the FIDIC Harmonised Edition for ODA projects; DABs spread in Asia

Why Adjudication is Preferred Over Litigation

Problem with litigation	Adjudication advantage
Time-consuming and expensive	Quicker and generally less expensive
Creates conflict	Can resolve the issue while the project continues
Uses up resources	More focused procedure
Damages business relationships	Less destructive to ongoing relationships
Complicated procedures and interlocutory matters	Simpler, issue-focused process
Little opportunity for early settlement	Supports early decision/settlement
EXAM	Exam line: Adjudication is attractive in construction because cash flow and project continuity require a quick decision.

6. Arbitration

Principle of Arbitration

- Arbitration is an ADR alternative to litigation.
- It is based on an arbitration agreement in the contract.
- The arbitrator's decision is called an award and is final and binding in most cases.
- The parties may use institutional rules such as SIAC, HKIAC, KIAC and JCAA.

Important Arbitration Institutions Mentioned

Short form	Full name / place
SIAC	Singapore International Arbitration Centre
HKIAC	Hong Kong International Arbitration Centre
KIAC	Kigali International Arbitration Centre
JCAA	Japan Commercial Arbitration Association
BIAC	Bangladesh International Arbitration Centre

The Arbitrator

- An independent and impartial third party chosen by the parties.
- Usually a specialist technical expert with professional and industry experience.
- For variation-cost and delay-damage disputes, a sole arbitrator may be a qualified quantity surveyor.
- For a three-person tribunal, the slides suggest two engineers and one lawyer as an example.
- The arbitrator studies evidence, may visit the site, hears the parties, decides the issues and publishes an award.
- The award is binding and may be enforced like a court judgment.

FLOW

Memory flow: Evidence → Site → Hearing → Decision → Award → Enforcement.

7. Main Features of Arbitration

Mnemonic: C-P-F-A-E-L

Code	Feature	Easy explanation
C	Consensual	Arbitration requires an agreement between the parties
P	Private & confidential	Proceedings are not normally public
F	Flexible	Procedure can handle documents, physical evidence, law and facts flexibly
A	Autonomy of parties	Parties can choose arbitrator, rules, law, procedure and evidence
E	Enforceable	Awards can be enforced domestically and internationally
L	Limited appeal	There is generally a limited right of appeal

Cheaper and Quicker - “Maybe”

The slides deliberately say arbitration may be cheaper and quicker than litigation, **but not always**. Complex evidence, several arbitrators, experts and long hearings can increase cost and time.

Effect of an Arbitration Agreement

- When a valid arbitration agreement exists, courts will generally require the parties to arbitrate.
- The arbitration award is normally final and binding, with limited appeal rights.

VS

Exam distinction: Adjudication is normally designed for a quick interim/binding construction decision; arbitration is a consensual private process that ends in an enforceable award.

8. New York Convention and Contractual Routes

New York Convention (1958)

The slides describe it as a United Nations convention that makes international arbitration awards legally valid and enforceable across member countries.

NY

Main attraction: The New York Convention gives international arbitration almost global enforceability.

FIDIC Clause 20

The slides identify **FIDIC Clause 20** as the dispute-related clause in the FIDIC Rainbow Forms. The slides do not provide a detailed Clause 20 step-by-step process, so this guide does not add one.

PW3 Clause 92 - Settlement of Disputes

Clause	Stage	বাংলা
92.1	Amicable settlement	পারস্পরিক সমঝোতা
92.2	Adjudication	অ্যাডজুডিকেশন / দ্রুত সিদ্ধান্ত
92.3	Arbitration	সালিশ / আরবিট্রেশন
AAA	Mnemonic AAA: Amicable → Adjudication → Arbitration. তিনটি A মনে রাখুন।	

Overall Dispute Escalation

Level	Process	Control / decision
1	Negotiation / amicable settlement	Parties try to agree directly
2	Mediation / conciliation	Neutral person helps; parties still control settlement
3	Adjudication	Neutral adjudicator gives a quick binding decision
4	Arbitration	Arbitrator gives a final/binding award
5	Litigation	Court gives a judgment

9. Comparison: Adjudication vs Arbitration vs Litigation

Factor	Adjudication	Arbitration	Litigation
Main basis	Legislation/contract; construction focus	Agreement in contract	State court process
Typical purpose	Quick payment/construction decision	Private final dispute resolution	Formal judicial resolution
Decision-maker	Adjudicator	Arbitrator/tribunal	Judge/court
Speed	Quick	May be quicker than court	Usually slow
Cost	Relatively inexpensive	May be cheaper - not always	Usually expensive
Privacy	Generally private	Private and confidential	Often public
Outcome	Binding decision	Final/binding award	Court judgment
Appeal	Limited/depends on regime	Limited	Appeal routes available
International enforcement	Not the main focus of slides	Strong under NY Convention	Depends on court/jurisdiction

Fast Selection Guide

FAST Need an urgent payment decision?: Think adjudication.

FINAL Need a private final technical decision?: Think arbitration.

COURT Need a formal state-court judgment?: Think litigation.

Common exam traps

- Do not say every ADR result is binding; mediation and conciliation depend on party agreement.
- Do not say arbitration is always cheap or fast; the slides say "maybe".
- Do not confuse adjudicator with arbitrator: adjudication is faster and construction/payment-focused; arbitration ends in an award.
- Do not forget that an arbitration agreement is the legal foundation of arbitration.

10. Essential Vocabulary with Bangla Meanings

English	বাংলা	English	বাংলা
Dispute	বিরোধ / মতবিরোধ	Resolution	নিষ্পত্তি
Bargain	চুক্তিগত সমঝোতা	Enforceable	আইনগতভাবে বলবৎযোগ্য
Entitlement	দাবির অধিকার	Magnitude	পরিমাণ / মাত্রা
ADR	বিকল্প বিরোধ নিষ্পত্তি	Conciliation	সমঝোতা সহায়তা
Mediation	মধ্যস্থতা	Adjudication	নিরপেক্ষ দ্রুত সিদ্ধান্তপ্রক্রিয়া
Adjudicator	অ্যাডজুডিকেটর / সিদ্ধান্তদাতা	Impartial	নিরপেক্ষ
Natural justice	প্রাকৃতিক ন্যায়বিচারের নীতি	Governing law	প্রযোজ্য আইন
Discretion	বিবেচনাধিকার	Immunity	আইনগত সুরক্ষা
Bad faith	অসৎ উদ্দেশ্য	Arbitration	সালিশ / আরবিট্রেশন
Arbitrator	সালিশকারী	Award	সালিশি রায়
Binding	বাধ্যতামূলক	Confidential	গোপনীয়
Consensual	পারস্পরিক সম্মতিভিত্তিক	Autonomy	স্বাধীন সিদ্ধান্তের ক্ষমতা
Enforcement	কার্যকর/বলবৎ করা	Appeal	আপিল
Litigation	আদালতের মামলা	Judgment	আদালতের রায়
Amicable settlement	বন্ধুত্বপূর্ণ/পারস্পরিক সমঝোতা	Interlocutory matter	মূল বিরোধ নিষ্পত্তির আগের অন্তর্বর্তী প্রক্রিয়া

11. Exam Answer Writing and Probable Questions

DPEC Formula for Written Answers

Step	What to write
D - Definition	Start with a precise definition.
P - Points	Write the main features, rules or steps in numbered form.
E - Example	Use a construction example, contract clause or comparison.
C - Conclusion	End with one clear concluding sentence.

Probable Written Questions

5. Define dispute resolution and explain the root and nature of construction disputes.
6. What is ADR? Discuss its methods and advantages.
7. Explain the FIDIC Rainbow Suite and distinguish the Red, Yellow, Silver and Green Books.
8. Define adjudication and explain the role of an adjudicator.
9. Discuss the history and international models of construction adjudication.
10. Why is adjudication preferred over litigation in construction disputes?
11. Explain the principle of arbitration and the role of an arbitrator.
12. Discuss the main features of arbitration.
13. What is the New York Convention 1958 and why is it important?
14. Distinguish adjudication, arbitration and litigation.
15. Explain PW3 Clause 92 settlement stages.
16. Write short notes on BIAC, SIAC, HKIAC, KIAC and JCAA.

5-mark Answer Skeleton: "Advantages of ADR"

- Definition of ADR (1 mark)
- Time and cost saving (1 mark)
- Party control and flexibility (1 mark)
- Preservation of relationships and access to justice (1 mark)
- Short conclusion with construction relevance (1 mark)

12. Practice MCQs

1. ADR generally takes place outside which process?

A. Procurement B. Government judicial process C. Design review D. Tender evaluation

Answer: B

2. Which method is described as quick and inexpensive for construction/payment disputes?

A. Litigation B. Adjudication C. Appeal D. Tendering

Answer: B

3. An adjudicator should act:

A. For the employer B. For the contractor C. Impartially D. As a witness

Answer: C

4. The decision of an arbitrator is called:

A. Certificate B. Award C. Variation D. Notice

Answer: B

5. Arbitration is primarily based on:

A. An arbitration agreement B. A building permit C. A tender bond D. A court summons

Answer: A

6. Which FIDIC book is for EPC/Turnkey projects?

A. Red B. Yellow C. Silver D. Green

Answer: C

7. Which FIDIC book is the Short Form of Contract?

A. Red B. Yellow C. Silver D. Green

Answer: D

8. The 1958 convention relevant to enforcement of foreign arbitral awards is:

A. Geneva Protocol B. New York Convention C. Kyoto Protocol D. Rome Statute

Answer: B

9. Under PW3 Clause 92, the first step is:

A. Litigation B. Arbitration C. Amicable settlement D. Appeal

Answer: C

10. Which statement matches the slides?

A. Arbitration is always cheaper B. Arbitration is always faster C. Arbitration may be cheaper and faster D. Arbitration is never binding

Answer: C

11. Which is NOT one of the nature-of-dispute mnemonic ETLE?

A. Technical B. Legal C. Entitlement D. Insurance

Answer: D

12. The Bangladesh institution shown in the slides is:

A. BIAC B. SIAC C. JCAA D. HKIAC

Answer: A

13. Last-Minute Revision Sheet

One-page Master Recall

Topic	Memory key	What to say in the exam
Nature of disputes	ETLE	Enforceable, Technical, Legal, Entitlement/magnitude
ADR advantages	TCFRRJ	Time, Control, Focus, Flexibility, Relationships, Results, Justice
FIDIC books	RYSG	Red, Yellow, Silver, Green
Adjudication	QIB	Quick, Independent, Binding
Adjudicator role	INPDI	Impartial, Natural justice, Proper law, Discretion, Immunity
Arbitration features	CPFAEL	Consensual, Private, Flexible, Autonomy, Enforceable, Limited appeal
PW3 Clause 92	AAA	Amicable, Adjudication, Arbitration
Answer writing	DPEC	Definition, Points, Example, Conclusion

30-second Oral Summary

Construction disputes arise from contractual, technical, legal and claim-related issues. ADR offers faster and more flexible alternatives to court. Adjudication gives a quick binding construction decision, while arbitration is a consensual private process ending in an enforceable award. FIDIC Clause 20 and PW3 Clause 92 provide contractual routes, and the New York Convention supports international enforcement of arbitral awards.

7-Day Revision Plan

Day	Task
1	Dispute basics + ETLE
2	ADR methods and advantages
3	JCT/FIDIC Rainbow Suite
4	Adjudication + history/models
5	Arbitration + institutions
6	Comparison + clauses + vocabulary
7	Write two answers + complete MCQs + final recall
PASS	Final advice: Do not memorize paragraphs. Memorize the code, then expand each letter into one or two complete sentences.

Prepared from the uploaded BECM 3107 lecture slides. No external legal update has been added.